IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF ILLINOIS
BENTON DIVISION

In re: JOHN Q. EXAMPLE and JANE R. EXAMPLE, Debtors. TRUSTEE A. SAMPLE, Chapter 7 Trustee, Plaintiff, v. EXAMPLE LENDER, N.A., Defendant.	Case No. 00-00000 Chapter 7 Adversary No. 00-00000

BRIEF IN SUPPORT OF DEFENDANT'S MOTION TO DISMISS ADVERSARY COMPLAINT

INTRODUCTION

This brief supports Defendant Example Lender, N.A.'s motion to dismiss the adversary complaint under Federal Rule of Civil Procedure 12(b)(6), made applicable by Federal Rule of Bankruptcy Procedure 7012(b). The complaint asks the Court to avoid a payment made in the ninety days before the petition. It does not allege facts showing that the payment was made on account of an antecedent debt owed to a creditor, and the motion should be granted.[1]

BACKGROUND

A. The Loan and the Payment

The debtors borrowed money from the Defendant in 2025 under a written note secured by a vehicle. The note required monthly payments. The debtors made the payment at issue by an automatic transfer from their checking account in the ninety days before they filed their voluntary petition under Chapter 7.

[1] The sample's footnote text. Footnote text is part of the brief, not a separate filing, and it is single-spaced.

The complaint does not allege that any payment was late, that the Defendant received more than it was owed, or that the debtors were insolvent when the transfer was made. It alleges only the date and the amount of the transfer.

B. The Adversary Complaint

The Trustee filed this adversary complaint on the last day before the deadline. It has one count, which seeks to avoid and recover the transfer. The complaint attaches no note, no account statement and no payment history.

ARGUMENT

I. The complaint does not plead the elements of avoidance

A trustee who seeks to avoid a transfer must plead facts that, taken as true, show each element of the claim. The complaint pleads the date and amount of the transfer and nothing more.

> Sample quotation for layout only: a pleading must contain a short and plain statement of the claim showing that the pleader is entitled to relief.

The Court does not accept a legal conclusion as a fact. The complaint's statement that the transfer was made "on account of an antecedent debt" is a conclusion, and the complaint offers no fact to support it. The pleading standard requires more than that.

II. The Court should dismiss the complaint without leave to amend

The following reasons support dismissal with prejudice:

- the debt was incurred and paid under a written note whose terms are not disputed;
- the Trustee has already had the debtors' records for more than a year; and
- amendment would be futile because the transfer was an ordinary monthly payment.

CONCLUSION

For these reasons, the Defendant asks the Court to dismiss the adversary complaint with prejudice and to grant any other relief the Court considers just.

Dated: January 1, 2030

Respectfully submitted,

EXAMPLE LENDER, N.A.,
Defendant

/s/ Pat Sample
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CERTIFICATE OF SERVICE

I certify that on January 1, 2030, I electronically filed this brief with the Clerk of the Court using the CM/ECF system, which will send notification of the filing to the registered participants. I further certify that on the same date I served a copy by first-class United States mail, postage prepaid, on the party listed below, who is not a registered participant.

Trustee A. Sample, Chapter 7 Trustee
100 Trustee Court, Carbondale, IL 62901

/s/ Pat Sample
Pat Sample